

SYLLABUS FOR THE 2026 BAR EXAMINATIONS

LABOR AND SOCIAL LEGISLATION (10%)

NOTE: Only laws, rules, issuances, and jurisprudence pertinent to these topics as of **June 30, 2025** are examinable materials within the coverage of the 2026 Bar Examinations.

Unless otherwise indicated in the headings or in the entries themselves, the provisions of law cited below refer to the Labor Code of the Philippines (LC).

I. BASIC PRINCIPLES AND CONCEPTS

A. Legal Basis

1. International Documents
 - a. International Labor Organization Ratifications
2. 1987 Constitution
3. Civil Code
4. Labor Code

B. State Labor Policies

1. Labor as Primary Social Economic Force – 1987 Constitution, Art. II, Sec. 18
2. Full Protection to Labor – 1987 Constitution, Art. XIII, Sec. 3
3. Security of Tenure – 1987 Constitution, Art. XIII, Sec. 3
4. Social Justice – 1987 Constitution, Art. II, Sec. 10; LC, Art. 218
5. Equal Work Opportunities – 1987 Constitution, Art. XIII, Sec. 3; LC, Art. 3
6. Right to Self-organization and Collective Bargaining – 1987 Constitution, Art. XIII, Sec. 3; LC, Arts. 3 and 253
7. Construction of Labor and Social Legislation – LC, Art. 4; NCC, Art. 1702

II. RECRUITMENT AND PLACEMENT

A. Definition of Recruitment and Placement

B. Local Employment – LC, Title I

1. Parties

a. Worker

- i. Employment of Non-resident Aliens – LC, Arts. 40-42; Department Order [D.O.] No. 186, s. 2017, Secs. 1-3 and 12-14, as amended by D.O. No. 221, s. 2021; D.O. No. 205, s. 2019, Secs. 1-3 and 7-8

b. Employment Office or Agency

- i. Public Employment Offices – LC, Art. 16
- ii. Private Employment Entities – LC, Art. 25
 - (a) Employment Agency v. Recruitment Entity
 - (b) License/Authority Requirement

- (1) Non-transferability
 - (2) Suspension or Cancellation
- C. Overseas Employment – R.A. No. 8042, as amended
 - 1. Regulatory Authorities
 - a. Department of Labor and Employment (DOLE)
 - b. Department of Migrant Workers (DMW)
 - 2. Parties
 - a. Migrant Worker or Overseas Filipino Worker
 - b. Private Employers or Employment and Recruitment Agents
 - i. Employment Agency v. Recruitment Entity
 - ii. Liability of Local Recruitment Entity and Foreign Employer
 - (a) Solidary Liability
 - (b) Imputed Knowledge
 - iii. Entities and Persons Prohibited from Overseas Recruitment
 - iv. License or Authority Requirement
 - (a) Non-transferability
 - (b) Suspension or Cancellation
 - v. Ban on Direct Hiring
- D. Regulation of Recruitment and Placement Activities
 - 1. Prohibited Practices – LC, Art. 34
 - 2. Illegal Recruitment
 - a. Elements and Types
 - b. Distinguished from Estafa – Revised Penal Code, Arts. 315, 316, and 318

III. EMPLOYMENT RELATIONSHIP

- A. Employer–Employee Relationship
 - 1. Definition
 - a. D.O. No. 147, s. 2015, Sec. 3
 - 2. Tests
 - 3. Burden of Proof
 - 4. Piercing the Corporate Veil
 - 5. Cases Involving Television Broadcasters
- B. Contracting – LC; D.O. No. 174, s. 2017; Executive Order [E.O.] No. 51; Department Circular No. 1, s. 2017
 - 1. Trilateral Relationship; Requirements for Independent Contractor
 - 2. Permissible Contracting or Subcontracting; Not Covered
 - 3. Rights of Contractor’s or Subcontractor’s Employees
 - 4. Effect of Termination of Employment
 - 5. Labor-only Contracting
 - 6. Registration of Contractor
 - 7. Other Prohibitions
 - 8. Solidary Liability

- 9. Retaliatory Measures
- 10. Applicability/Non-applicability
- C. Kinds of Employment
 - 1. Regular
 - 2. Casual
 - 3. Project – D.O. No. 19, s. 1993
 - 4. Fixed Term
 - 5. Seasonal
 - 6. Probationary

IV. LABOR STANDARDS

- A. Conditions of Employment
 - 1. Hours of Work
 - 2. Flexible Work Arrangements – R.A. No. 11165
 - 3. Bunkhouse Rule
 - 4. Personal Comfort Doctrine
 - a. Normal Hours of Work
 - b. Night Shift Differential
 - 5. Overtime Work
 - a. Compressed Work Week
 - b. Built-in Overtime
 - 6. Non-compensable Hours; When Compensable
 - a. Meal Break
 - b. Power Interruptions or Brownouts
 - c. Idle Time
 - d. Travel Time
 - e. Commuting Time
 - f. Waiting Time
 - 7. Rest Periods
 - 8. Service Charge – R.A. No. 11360; D.O. No. 242, s. 2024
- B. Wages – LC and its Implementing Rules and Regulations (IRR); R.A. No. 6727, R.A. No. 9504; R.A. No. 9178
 - 1. Definition, Components, and Exclusions
 - a. Wage v. Salary
 - b. Bonus, 13th Month
 - c. Holiday Pay – LC and its IRR; E.O. No. 203; R.A. No. 9492; R.A. No. 9849; R.A. No. 10966
 - 2. Principles
 - a. No Work, No Pay or Fair Day's Wage for a Fair Day's Work
 - b. Equal Pay for Equal Work or Equal Pay for Work of Equal Value
 - c. Non-diminution of Benefits
 - 3. Minimum Wage
 - a. Payment by Hours Worked
 - b. Payment by Results

4. Payment of Wages
5. Prohibitions Regarding Wages
6. Wage Determination – LC, R.A. No. 6727, R.A. No. 8188, R.A. No. 9178, Latest Wage Orders
 - a. Wage Order
 - b. Wage Distortion
- C. Leaves
 1. Under the Labor Code
 - a. Service Incentive Leave
 2. Under Special Laws
 - a. Parental Leave for Solo Parents – R.A. No. 8972, as amended by R.A. No. 11861
 - c. Maternity Leave – R.A. No. 11210
 - d. Paternity Leave – R.A. No. 8187
 - e. Gynecological Leave – R.A. No. 9710, Sec. 18; D.O. No. 112, s. 2011; CSC Resolution No. 1000432, November 22, 2010
 - f. VAWC Leave – R.A. No. 9262
- D. Telecommuting – R.A. No. 11165
 1. Definition – Sec. 3
 2. Telecommuting Program – Sec. 4
 3. Fair Treatment – Sec. 5
- E. Working Conditions for Special Workers
 1. Apprentices and Learners
 - a. Dual Training System – R.A. No. 7686; R.A. No. 10869
 - b. R.A. No. 11230
 2. Persons with Disabilities
 - a. R.A. No. 7277, as amended
- F. Working Conditions for Special Groups of Employees
 1. Women Workers – R.A. No. 7192; R.A. No. 7877; R.A. No. 9710; R.A. No. 10028
 - a. Discrimination
 - b. Stipulation Against Marriage
 - c. Prohibited Acts
 - d. Facilities for Women
 - e. Women Working in Night Clubs, etc.
 2. Minors
 - a. R.A. No. 7610, as amended
 - b. Department Circular No. 2, s. 2017 (Guidelines on the Issuance of Work Permit for Children Below 15 years of Age Engaged in Public Entertainment or Information), as amended by Department Circular No. 2, s. 2018
 - c. DOLE Department Advisory No. 01, s. 2008
 - d. D.O. No. 149, s. 2016; D.O. No. 149-A, s. 2017
 3. Night Workers – R.A. No. 10151
 4. *Kasambahay* – R.A. No. 10361
 5. Homeworkers

G. Sexual Harassment in the Work Environment – R.A. No. 7877; R.A. No. 11313
(Safe Spaces Act), Art. IV

H. Management Prerogative

1. Occupational Qualifications
2. Productivity Standards
3. Change of Working Hours
4. Transfer of Employees
5. Discipline of Employees
6. Grant of Bonuses and Other Benefits
7. Clearance Process
8. Post-employment Restrictions
9. Limitations
10. Discriminatory Practices
 - a. Age Discrimination – R.A. No. 10911
 - b. Gender or Marital Status Discrimination – R.A. No. 9710;
R.A. No. 8972, Sec. 7, as amended
 - c. Discrimination against Disabled Persons – R.A. No. 7277

V. LABOR RELATIONS

A. Right to Self-organization

1. Coverage
 - a. Government Employees
2. Eligibility for Membership
3. Doctrine of Necessary Implication
4. Commingling or Mixed Membership
5. Labor Organizations
 - a. Labor Organization and Legitimate Labor Organization
 - b. Union, Workers' Association, and Legitimate Workers' Association
 - c. National Union or Federation, Union Center
 - d. Company Union

B. Bargaining Unit

1. Determination of Constituency
2. Employees Outside the Bargaining Unit

C. Bargaining Representative

1. Sole and Exclusive Bargaining Agent
2. Certification and Consent Elections

D. Bystander Rule

E. Rights, Terms, and Conditions of Membership

1. Admission and Discipline of Members
2. Election of Officers: Qualifications, Manner of Election, Tenure and Compensation
3. Major Policy Matter
4. Union Funds
5. Payment of Attorney's Fees

- 6. Check-off, Assessment, and Agency Fees
- 7. Mandatory Activity
- 8. Union Information
- 9. Enforcement and Remedies; Procedure, Jurisdiction, and Sanctions
- 10. Collective Bargaining
 - a. Duty to Bargain
 - b. Procedure
 - i. Freedom Period
 - c. Collective Bargaining Agreement
 - i. Mandatory Provisions
 - ii. Economic and Non-economic Terms/Conditions
 - iii. Union Security Clause
- F. Union Chartering or Registration
- G. Unfair Labor Practice
 - 1. Definition and Concept
 - 2. By Employers
 - 3. By Labor Organizations
- H. Peaceful Concerted Activities – see also R.A. No. 6727
 - 1. Strikes
 - 2. Pickets
 - 3. Lockouts
 - 4. Assumption of Jurisdiction by DOLE Secretary

VI. SUSPENSION AND TERMINATION OF EMPLOYMENT

- A. Termination or Suspension by Employer
 - 1. General Concept
 - 2. Just Causes
 - 3. Authorized Causes – see also D.O. No. 147, s. 2015
 - a. Retrenchment
 - b. Redundancy
 - c. Closure
 - d. Disease
 - e. Union Security Clause
 - f. Illegal Strike
 - i. Procedure – see also D.O. No. 147, s. 2015
 - ii. Quitclaim
 - 4. Due Process Requirements
 - 5. Preventive Suspension
 - 6. Constructive Dismissal v. Demotion
 - 7. Termination of Migrant Worker’s Contract – R.A. No. 8042, as amended by R.A. No. 10022, Sec. 10
- B. Termination by employee
 - 1. Resignation
 - 2. Unilateral Termination – LC, Art. 300(b)
 - 3. Abandonment

C. Illegal Dismissal

1. Definition

2. Reliefs

- a. Reinstatement
- b. Backwages
- c. Damages and Attorney's Fees
- d. Separation Pay
- e. Financial Assistance
- f. Indemnity
- g. Liability of Corporate Officers

D. Retirement – R.A. No. 7641 and its IRR; Labor Advisory on Retirement Pay, as amended by R.A. No. 8558; R.A. No. 10757

VII. SOCIAL LEGISLATION

A. Social Security – R.A. No. 11199

- 1. Coverage and Exclusions
- 2. Dependents; Beneficiaries
- 3. Benefits

B. Government Service Insurance – R.A. No. 8291

- 1. Coverage and Exclusions
- 2. Dependents; Beneficiaries
- 3. Benefits

C. Limited Portability Scheme – R.A. No. 7699

D. Disability and Death Benefits

- 1. In General – LC, Art. 198
- 2. Seafarers' Disability Claims – 2010 POEA-SEC; R.A. No. 12021 (Magna Carta of Filipino Seafarers), Secs. 22, 28-29, 32, 57, and its IRR
- 3. Supplemental Guidelines on the Implementation of the Mental Health Policy and Program in the Workplace, Labor Advisory No. 19, September 15, 2023

VIII. LABOR ADJUDICATION: JURISDICTION & REMEDIES

A. Labor Adjudication Agencies and their Jurisdiction

1. National Labor Relations Commission (NLRC)

- a. Regional Arbitration Branches (RAB) (Labor Arbiters)
 - i. Jurisdiction in Local Employment Cases
 - ii. Jurisdiction in Overseas Employment Cases – R.A. No. 8042
- b. Commission Proper – see also R.A. No. 9347

2. DOLE

- a. Regional Directors
 - i. Jurisdiction
 - ii. Recovery and Adjudicatory Power

- b. DOLE Secretary
 - i. Jurisdiction
 - ii. Visitorial and Enforcement Powers – D.O. No. 283, s. 2023; D.O. No. 183, s. 2017
 - iii. Power to Suspend Effects of Termination
 - c. National Conciliation and Mediation Board (NCMB) and Voluntary Arbitrators – E.O. No. 126, as amended by E.O. No. 251
 - i. Jurisdiction in Labor Relations Cases
 - ii. Jurisdiction in Seafarers’ Disability Cases
 - iii. Tripartite Voluntary Arbitration Advisory Council
 - d. Bureau of Labor Relations
- 3. Court of Appeals
- 4. Supreme Court
- B. Procedure and Remedies
 - 1. Procedural Standards in Labor Proceedings – LC, Art. 227
 - a. Burden of Proof
 - b. Quantum of Evidence
 - c. Technical Rules not Binding
 - 2. Single-Entry Approach – D.O. No. 151, s. 2016
 - a. Mandatory Conciliation-Mediation – R.A. No. 10396
 - 3. Procedure in the NLRC
 - a. Appeal from the RAB to the NLRC Proper
 - i. Perfection
 - ii. Reinstatement or Execution Pending Appeal
 - b. Injunction
 - 4. *Certiorari* against DOLE Secretary and NLRC Proper Rulings

— NOTHING FOLLOWS —